

		132.) This is sufficient to state a claim for violation of Penal Code § 502. As to Vortek, there are no factual allegations as to how it accessed Plaintiff's computers or otherwise took actions to knowingly assist Torres and Stetzko in accessing the computer system. Moreover, Vortek was not in existence at the time Torres and Stetzko were employed by Plaintiff. Accordingly, the demurrer to the eleventh cause of action is OVERRULED as to Torres and Stetzko and SUSTAINED as to Vortek with leave to amend. Fourteenth Cause of Action – Violation of Penal Code § 496 Penal Code § 496 makes it a crime to buy, receive, conceal, sell, or withhold property that is known to been stolen or obtained in any manner constituting theft or extortion. The FAC alleges Defendants knowingly received and possessed AirGap's property knowing that such property had been obtained unlawfully and without Plaintiff's consent. Defendants argue the FAC fails to allege Defendants had "actual knowledge of the stolen character of the property." But this argument is just a matter of semantics. Plaintiff alleges the property was "unlawfully obtained" which is synonymous with theft. Accordingly, the demurrer to the fourteenth cause of action is OVERRULED. The case management conference is continued to October 26, 2026 at 9:00 a.m. in Department C28. Plaintiff has 20 days leave to amend the complaint. Defendants shall give notice of this ruling.
58.	Rajabi v. Smith 2023-01344444	The court will not issue a tentative on the motion to enforce the settlement or on the motion for leave to intervene. The parties and/or their counsel are ordered to appear on June 8, 2026 to discuss the status of this case.
59.	Vizcarra v. Bevmó! Inc. 2023-01348855	Defendant / cross-defendant Dock Pros, Inc.'s unopposed motion for summary adjudication as to plaintiff Isidro Vizcarra's complaint, as well as indemnity cross-complaints by defendants / cross-complainants Bevmó! Inc. ["Bevmó"], and Shear Construction, is GRANTED IN PART and MOOT IN PART. (Code Civ. Proc., § 437c [authorizing motion].)